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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
12/925,647	10/26/2010	N.B. Baktha Reddy	1007	7155

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BREGEN TECHNICAL CONSULTANTS L.L.C.
154 OLD CLINTON ROAD
FLEMINGTON, NJ 08822

EXAMINER

HOFFMAN, SUSAN COE

ART UNIT	PAPER NUMBER
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1655

MAIL DATE	DELIVERY MODE
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08/25/2011

PAPER

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Office Action Summary	Application No.	Applicant(s)
	12/925,647	REDDY ET AL.
	Examiner	Art Unit
	Susan Hoffman	1655

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☐ Responsive to communication(s) filed on 27 June 2011.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

- 4) ☒ Claim(s) 1-6 is/are pending in the application.
- 4a) Of the above claim(s) _____ is/are withdrawn from consideration.
- 5) ☐ Claim(s) _____ is/are allowed.
- 6) ☒ Claim(s) 1-6 is/are rejected.
- 7) ☐ Claim(s) _____ is/are objected to.
- 8) ☐ Claim(s) _____ are subject to restriction and/or election requirement.

Application Papers

- 9) ☐ The specification is objected to by the Examiner.
- 10) ☐ The drawing(s) filed on _____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).
- 11) ☐ The oath or declaration is objected to by the Examiner. Note the attached Office Action or form PTO-152.

Priority under 35 U.S.C. § 119

- 12) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
- a) ☐ All b) ☐ Some * c) ☐ None of:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. _____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

* See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
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| <p>1) ☒ Notice of References Cited (PTO-892)</p> <p>2) ☐ Notice of Draftsperson's Patent Drawing Review (PTO-948)</p> <p>3) ☒ Information Disclosure Statement(s) (PTO/SB/08)
Paper No(s)/Mail Date <u>7/30/11</u>.</p> | <p>4) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date. _____.</p> <p>5) ☐ Notice of Informal Patent Application</p> <p>6) ☐ Other: _____.</p> |
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DETAILED ACTION

1. Claims 1-6 are currently pending.
2. A third-party submission has been filed under 37 CFR 1.99 on May 23, 2011 in the published application.

To ensure that a third-party submission does not amount to a protest or pre-grant opposition, 37 CFR 1.99 does not permit the third party to have the right to insist that the examiner consider any of the patents or publications submitted. Furthermore, if the submission or part of the submission is not in compliance with 37 CFR 1.99, that noncompliant submission or part thereof will not be entered in the application file. Therefore, unless the examiner clearly cites a patent or publication on form PTO-892, Notice of References Cited and such reference is used in a rejection or its relevance is actually discussed during prosecution, consideration by the examiner of any patent or publication submitted in a third-party submission cannot be presumed.

If the applicant wants to ensure that the information in a third-party submission is considered by the examiner, the applicant should submit the information in an IDS in compliance with 37 CFR 1.97 and 37 CFR 1.98. An individual who has a duty to disclose under 37 CFR 1.56 should also submit any material information contained in a third-party submission to the Office in an IDS in compliance with 37 CFR 1.97 and 37 CFR 1.98 to ensure such material information is properly disclosed to the examiner.

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Election/Restrictions

3. Applicant's election of *Pongamia pinnata* and *Lawsonia alba* for the species in the reply filed on June 27, 2011 is acknowledged. Because applicant did not distinctly and specifically point out the supposed errors in the restriction requirement, the election has been treated as an election without traverse (MPEP § 818.03(a)).
4. Claims 1-6 are examined on the merits solely in regards to the elected species.

Claim Objections

5. Claims 1-6 are objected to because of the following informalities: the claims must end in a period. Appropriate correction is required.
6. Claim 5 is objected to because of the following informalities: "an" at the beginning of line 1 should be capitalized. Appropriate correction is required.

Claim Rejections - 35 USC § 112

The following is a quotation of the second paragraph of 35 U.S.C. 112:

The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.

Claims 1-6 are rejected under 35 U.S.C. 112, second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which applicant regards as the invention.

7. Claims 1-6 are indefinite because it is unclear if the stated percentages are by weight or volume.

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8. Claim 2 is indefinite because it states that the ingredients are “in the range of” a single percentage. A single percentage is not a range. In addition, it is unclear what is meant by “component extract” and “the extract phrase” in the last line of the claim.

9. Claim 3 is indefinite because there is a lack of antecedent basis for “the oil phase” in line 2 of the claim.

10. Claim 5 is indefinite because it is unclear what is meant by “the oil of which” in line 1. In addition, the second part of the claim does not use “when present” to describe the ingredients; thus, it is unclear if all four ingredients are required or if only two are required as stated in the first part of the claim.

11. Claim 6 is indefinite because it does not use “when present” to describe the Cocos nucifera; thus, it is unclear if this ingredient is required or an option to select as stated in the first line of the claim.

Claim Rejections - 35 USC § 103

The following is a quotation of 35 U.S.C. 103(a) which forms the basis for all obviousness rejections set forth in this Office action:

(a) A patent may not be obtained though the invention is not identically disclosed or described as set forth in section 102 of this title, if the differences between the subject matter sought to be patented and the prior art are such that the subject matter as a whole would have been obvious at the time the invention was made to a person having ordinary skill in the art to which said subject matter pertains. Patentability shall not be negated by the manner in which the invention was made.

12. Claims 1-6 are rejected under 35 U.S.C. 103(a) as being unpatentable over Agasthiyar (Agasthiyar vaithya vallanthi 600, Pub&Ed Deenadhayalu muthaliar, Chennai (1924)).

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This reference teaches a composition which comprises extracts of *Pongamia pinnata* and *Lawsonia alba*. The composition is formulated as an oil for topical treatment of ulcers and wounds.

The reference does not specifically teach adding the ingredients in the percentages claimed by applicant. The amount of a specific ingredient in a composition is clearly a result effective parameter that a person of ordinary skill in the art would routinely optimize. "[W]here the general conditions of a claim are disclosed in the prior art, it is not inventive to discover the optimum or workable ranges by routine experimentation." In re Aller, 220 F.2d 454, 456, 105 USPQ 233, 235 (CCPA 1955). The reference teaches that each of the claimed ingredients is an active ingredient. An artisan of ordinary skill would routinely modify the amount of pharmaceutically active ingredients based on the patient's age, weight, gender, and condition. Therefore, an artisan would have been motivated to modify the amount of each ingredient in the combination in order to formulate a product that best achieves the desired results set forth in the reference. Thus, absent some demonstration of unexpected results from the claimed parameters, this optimization of ingredient amount would have been obvious at the time of applicant's invention.

The reference also does not specifically teach formulating the composition into an ointment or a cream. However, as discussed above, the reference does teach using the composition topically. Ointments and creams are well known topical compositions. Thus, an artisan of ordinary skill would be motivated to formulate the composition taught by the reference into these known forms.

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The reference also does not specifically teach that the composition has all of the uses claimed by applicant. However, a recitation of the intended use of the claimed invention must result in a structural difference between the claimed invention and the prior art in order to patentably distinguish the claimed invention from the prior art. If the prior art structure is capable of performing the intended use, then it meets the claim.

13. Claims 1-6 are rejected under 35 U.S.C. 103(a) as being unpatentable over Saxena (WO 2008/072256) in view of Nayak (Phytotherapy Research (2007), vol. 21, pp. 827-831).

Saxena teaches a topical composition which comprises an extract from *P. pinnata*. The composition is used to treat wounds, pressure ulcers, and diabetic ulcers. The reference teaches that the composition can be in oil form (see pages 4 and 7 and claims). The reference does not specifically teach including *L. alba* in the composition.

Nayak teaches using *L. inermis* to treat wounds. *L. inermis* is synonymous with *L. alba* (see <http://www.ewg.org/skindeep/ingredient.php?ingred06=703508>).

These references show that it was well known in the art at the time of the invention to use the claimed ingredients in compositions that treat wounds. It is well known that it is prima facie obvious to combine two or more ingredients each of which is taught by the prior art to be useful for the same purpose in order to form a third composition which is useful for the same purpose. The idea for combining them flows logically from their having been used individually in the prior art.

Based on the disclosure by these references that these substances are used in compositions to treat wounds, an artisan of ordinary skill would have a reasonable expectation that a combination of the substances would also be useful in creating compositions to treat

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wounds. Therefore, the artisan would have been motivated to combine the claimed ingredients into a single composition. No patentable invention resides in combining old ingredients of known properties where the results obtained thereby are no more than the additive effect of the ingredients. See MPEP section 2144.06, *In re Kerkhoven*, 626 F.2d 846, 850, 205 USPQ 1069, 1072 (CCPA 1980), *Ex parte Quadranti*, 25 USPQ2d 1071 (Bd. Pat. App. & Inter. 1992).

The references do not specifically teach adding the ingredients in the percentages claimed by applicant. The amount of a specific ingredient in a composition is clearly a result effective parameter that a person of ordinary skill in the art would routinely optimize. "[W]here the general conditions of a claim are disclosed in the prior art, it is not inventive to discover the optimum or workable ranges by routine experimentation." *In re Aller*, 220 F.2d 454, 456, 105 USPQ 233, 235 (CCPA 1955). The references teach that each of the claimed ingredients is an active ingredient. An artisan of ordinary skill would routinely modify the amount of pharmaceutically active ingredients based on the patient's age, weight, gender, and condition. Therefore, an artisan would have been motivated to modify the amount of each ingredient in the combination in order to formulate a product that best achieves the desired results set forth in the references. Thus, absent some demonstration of unexpected results from the claimed parameters, this optimization of ingredient amount would have been obvious at the time of applicant's invention.

The references also do not specifically teach formulating the composition into an ointment or a cream. However, as discussed above, the references do teach using the composition topically. Ointments and creams are well known topical compositions. Thus, an

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artisan of ordinary skill would be motivated to formulate the composition taught by the references into these known forms.

The references also do not specifically teach that the composition has all of the uses claimed by applicant. However, a recitation of the intended use of the claimed invention must result in a structural difference between the claimed invention and the prior art in order to patentably distinguish the claimed invention from the prior art. If the prior art structure is capable of performing the intended use, then it meets the claim.

14. No claims are allowed.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Susan Hoffman whose telephone number is (571)272-0963. The examiner can normally be reached on Monday-Thursday, 8:30-5:30.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on (571) 272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

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Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Susan Hoffman/
Primary Examiner, Art Unit 1655

Notice of References Cited	Application/Control No. 12/925,647	Applicant(s)/Patent Under Reexamination REDDY ET AL.	
	Examiner Susan Hoffman	Art Unit 1655	Page 1 of 1

U.S. PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Name	Classification
	A	US-			
	B	US-			
	C	US-			
	D	US-			
	E	US-			
	F	US-			
	G	US-			
	H	US-			
	I	US-			
	J	US-			
	K	US-			
	L	US-			
	M	US-			

FOREIGN PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Country	Name	Classification
	N					
	O					
	P					
	Q					
	R					
	S					
	T					

NON-PATENT DOCUMENTS

*		Include as applicable: Author, Title Date, Publisher, Edition or Volume, Pertinent Pages)
	U	Agasthiyar (Agathiyar vaithya vallanthi 600, Pub&Ed Deenadhayalu muthaliar, Chennai (1924))
	V	Nayak (Phytotherapy Research (2007), vol. 21, pp. 827-831).
	W	http://www.ewg.org/skindeep/ingredient.php?ingred06=703508 - accessed 8/2011
	X	

*A copy of this reference is not being furnished with this Office action. (See MPEP § 707.05(a).)
Dates in MM-YYYY format are publication dates. Classifications may be US or foreign.